

RAV Compliance Status — Attorney Meeting Document

Prepared for: legal counsel review **Source documents:** *Legal Research Memorandum v3* (Legal_Dossier_RentAVacation_v3.pdf) + *RAV Compliance Development Brief v1.0* **Audit date:** 2026-05-05 · **Last refreshed:** 2026-05-12 (Session 66 close) **Scope:** main branch as deployed to PROD as of commit 621d751 **Companion docs:** counsel-meeting-prep.md (agenda + 12-decision matrix) · compliance-gap-analysis.md (Part 4 priority gaps) **Implemented bar:** code present + at least one test + functionally correct + (for disclaimers) verbatim from Legal Dossier § VIII. **For disclaimers the bar is met today in code; counsel sign-off (#494) flips them from  to .**

1. Executive scoreboard — before and after Session 66

Domain	Audit start (2026-05-05)	After Session 66 (2026-05-12)	Pending counsel
3.1 Host Onboarding & Credentialing	0 / 2 / 2	1 / 2 / 2	host type (C4), licensing per state (C3), Stripe Identity (C2), ownership proof (C6)
3.2 Listing Creation & Display	0 / 1 / 3	3 / 0 / 1	license number display (C3)
3.3 Payment & Escrow	3 / 0 / 1	3 / 1 / 0	8.8 text approval (C9), Pay Safe sign-off (C1)
3.4 Tax Collection & Remittance	0 / 3 / 1	1 / 3 / 0	Stripe Tax activation (post-LLC), state registrations (C7)
3.5 Disclaimer System (8 + trademark)	0 / 3 / 5	0 / 9 / 1	every row pending counsel text approval (C9, C10)
3.6 Consumer Protection & Guest Safety	0 / 0 / 4	4 / 0 / 0	MLA carve-out wording (C11), trust-safety SOP (C8)
3.7 Rental Frequency / Threshold Monitoring	0 / 0 / 7	0 / 0 / 7	host type + thresholds + gate (C4 / C5) — entire domain awaits counsel
Totals	3 / 9 / 23	12 / 15 / 14	counsel sign-off flips 12 of the 15 Partial rows → Implemented

Format: Implemented / Partial / Gap.

Architectural notes:

- **Pay Safe = Stripe destination-charge model** is in production code today. Migration 068 made the hold period runtime-configurable. RAV never holds Guest funds in a RAV-controlled bank account. Counsel question **C1** seeks written confirmation this satisfies FL § 721.08 / CA B&P § 10145 / HI § 514E-9.
- **5-business-day escrow hold + check-in confirmation** with auto-release via cron (Migrations 068 + 073).
- **Central disclaimer registry** at `src/lib/disclaimers/registry.ts` — single source of truth for all 8 mandated disclaimers + trademark. Drift-detection test against the edge-function mirror.
- **Stripe Tax integration is wired** end-to-end; `STRIPE_TAX_ENABLED` env flag default OFF; activates with LLC/EIN (#127). No engineering work needed.

2. Part 5 — Two-column compliance status

Legend: ✓ Implemented = code + test + counsel-approved ● Deployed, counsel-pending = code + test + verbatim text from Legal Dossier § VIII; awaiting counsel sign-off via #494 (most disclaimers); or awaiting a single text fill-in (CA disclosure via #493) ⌚ Pending counsel input = engineering blocked on a counsel decision (C1–C12) ✕ Gap = not deployed; future scope

2.1 Business model & licensing

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
1	Platform must not act as real estate broker	FL § 721.20, CA DRE / B&P § 11003.5, NY RPL § 442	Marketplace-facilitator posture documented (DEC-034). Disclaimer 8.3 (Non-Broker / Non-Agent) deployed to Terms § 2 + new /about page via central registry. No platform negotiation; direct host-to-guest contracting.	● (text deployed, awaiting C9) + ⌚ (license-applicability C3)
2	Platform must not facilitate timeshare sales	FL § 721.11, CA B&P § 11003.5	<code>src/lib/listingValidation/noSales.ts</code> blocks 16 sale-language phrases (case-insensitive + NFKC normalization). Wired into <code>ListProperty.tsx handleSubmit</code> . Disclaimer 8.2 deployed to homepage / listing pages / footer.	✓ + ● (8.2 text pending C9)

3	License number collection & display for commercial operators	FL § 721.20, CA DRE, HI § 514E, NV NRS 119A, AZ ARS § 32-2197	Not deployed. Schema + UI await C3 (does RAV need this at all?) + C4 (host-type thresholds).	⌚
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2.2 Payment, escrow, and tax

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
4	Fund segregation (no commingling with operating funds)	FL § 721.08, CA B&P § 10145, HI § 514E-9	Stripe Connect destination-charge model — Guest funds enter Stripe's custody, never a RAV-controlled bank account. Verified at <code>supabase/functions/process-escrow-release/handler.ts:262-273</code> . Documented in <code>docs/payments/PAYSAFE-COMPLIANCE.md</code> (DEC-038, DEC-039).	✓ (architecture) + ⌚ (written sign-off — C1)
5	Disbursement timing (after check-in, not before)	FL § 721.08, escrow-licensing avoidance principle	5-business-day post-checkout hold via <code>system_settings.escrow_hold_period_days</code> (Migration 068, runtime-configurable). <code>auto-confirm-checkins</code> <code>cron</code> + <code>confirm-checkin</code> edge function (Migrations 073, Session 63). Release gated on (checkout + 5 days) AND no open disputes AND no admin hold.	✓
6	Refund processing within 5 business days	UDAP statutes; Guest Protection Policy	<code>process-cancellation/handler.ts:130-163</code> issues full refund immediately on Host cancellation via <code>stripe.refunds.create</code> .	✓
7	Tax collection & remittance	South Dakota v. Wayfair (2018); ~40 state marketplace-facilitator statutes	Stripe Tax wired (<code>create-booking-checkout/handler.ts:247</code> <code>automatic_tax: { enabled: STRIPE_TAX_ENABLED }</code>). Default OFF; activates with LLC/EIN (#127). <code>AdminTaxReporting.tsx</code> tracks monthly collection. Migration 075 added <code>marketplace_registrations</code> admin tab (51 jurisdictions seeded); counsel question C7 fills values per state.	⦿ (engine ready, env-flag OFF) + ⌚ (state-by-state fills via C7)

2.3 Required disclaimers (Legal Dossier Section VIII)

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
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8	Marketplace Disclaimer (8.1) — homepage, footer, all listing pages	All jurisdictions; UDAP / FTC § 5	Verbatim text from registry rendered at all three locations via <code><DisclaimerBlock id="8.1" /></code> .	● — counsel approves text via C9
9	No Timeshare Sales (8.2) — homepage, listing pages, header/footer	FL § 721.11, CA B&P § 11003.5; FTC v. Carroll (2026)	Deployed verbatim at all four locations.	● — C9
10	Non-Broker / Non-Agent (8.3) — ToS, About page	FL § 721.20, CA DRE, broker-licensing statutes	Deployed verbatim in <code>Terms.tsx</code> § 2 + new <code>about</code> page. The pre-fix Terms had wrong generic intermediary text — replaced.	● — C9
11	Tax Disclosure (8.4) — checkout, booking confirmation	All jurisdictions with applicable taxes	Verbatim text replaces the paraphrased pre-audit copy. Deployed at Checkout, BookingSuccess, and the booking-confirmation email (via edge-function mirror).	● — C9
12	Cancellation & Refund Policy (8.5) — listing pages, checkout, booking confirmation	All jurisdictions	Deployed verbatim alongside the per-listing <code><CancellationPolicyDetail /></code> . Also surfaced via the Guest Protection Policy product surface (page + badge + Checkout banner).	● — C9
13	Limitation of Liability (8.6) — ToS	All jurisdictions	Verbatim text replaces the pre-audit generic "intermediary" language. 12-month-platform-fee cap; consequential / punitive damages excluded. Deployed in <code>Terms.tsx</code> § 8.	● — C9
14	Florida-Specific Disclosure (8.7) — all FL listing pages, FL checkout (geo-targeted)	FL § 721.20	Migration 074 added <code>listings.state</code> column (backfilled). <code><StateSpecificDisclaimer propertyState={listing.state} /></code> renders 8.7 verbatim on every FL listing + FL checkout.	● — C9 (text), then ✓
15	California-Specific Disclosure — all CA listing pages (geo-targeted)	CA DRE, CA B&P § 11003.5 + § 17550	Wiring complete (<code>STATE_DISCLAIMER_MAP.CA</code> → <code>"8.7-CA"</code>). Registry entry intentionally omitted; component returns null until counsel returns verbatim text. Tracked in #493.	⌚ — C10

16	Escrow / Fund-Holding Notice (8.8) — payment flow, checkout, booking confirmation	FL § 721.08, CA § 10145, HI § 514E-9 (advisable everywhere)	Verbatim text deployed at Checkout, BookingSuccess, and the booking-confirmation email. Replaced the pre-audit "PaySafe — funds held in escrow until check-in" badge with the full required text. Substitution: "Stripe (the 'Pay Safe' service) " for [Payment Processor Name].	● — C9
17	Trademark / Affiliation Disclaimer	Trademark prudence; brand-owner enforcement risk	Migrated from inline <code>Footer.tsx</code> (PR #479 anti-pattern) to the central registry. Now rendered via <code><DisclaimerBlock id="trademark" variant="minimal" /></code> .	● — C9

2.4 Consumer protection

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
18	Guest Protection Policy (full refund within 5 business days for Host cancellation within 30 days of check-in)	UDAP statutes (all jurisdictions); platform-Guest contract	New <code>/guest-protection</code> page + <code><GuestProtectionBadge /></code> (badge + banner variants). Badge on PropertyDetail; banner above Pay button on Checkout; FAQ + Footer links. Underlying refund logic was already shipped — this PR added the consumer-facing surface.	✓
19	Listing accuracy reporting mechanism (pre-booking)	Palmer v. FantaSea Resorts (NJ App. Div. 2025)	Migration 077 created <code>listing_accuracy_reports</code> table. <code><ListingAccuracyReportDialog /></code> on PropertyDetail accepts anonymous + authenticated submissions. <code>AdminListingAccuracyReports</code> admin queue with Triage dialog + AlertDialog confirmation. RLS: anon INSERT (no impersonation), RAV team read+update, no DELETE.	✓
20	Fraud reporting & response	FTC § 5; wire-fraud statutes; FTC v. Carroll (2026)	Migration 078 created <code>fraud_reports</code> table. <code><FraudReportDialog /></code> from Footer + PropertyDetail. <code>AdminFraudReports</code> senior-admin-only tab with severity + escalation paths (legal / law enforcement separate from resolution states for audit). Internal-notes column separate from reporter-visible <code>resolution_notes</code> . RLS: anon INSERT, read restricted to <code>rav_admin/</code> <code>rav_owner</code> ONLY (stricter than accuracy reports — fraud allegations are sensitive).	✓

21	MLA Notice + arbitration carve-out for active-duty servicemembers	Steines v. Westgate Palace (11th Cir. 2024); 10 U.S.C. § 987	Migration 076 added <code>profiles.is_active_duty_military</code> (optional self-disclosure at signup). <code><MLANotice /></code> conditionally rendered at Checkout when self-disclosed. Terms § 9 contains verbatim MLA carve-out paragraph citing 10 U.S.C. § 987, 32 C.F.R. § 232, and <i>Steines v. Westgate Palace</i>. Protection applies regardless of self-disclosure — the carve-out is universal.	● — C11 (wording confirmation)
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2.5 Host classification & monitoring

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
22	Host type classification (Type 1 / 2 / 3)	FL § 721.20, CA DRE, HI § 514E, NV NRS 119A, AZ ARS § 32-2197	Not deployed. Awaits counsel C4 (thresholds). Schema design ready (<code>profiles.host_type</code> enum + <code>properties_owned</code> + <code>annual_rentals_planned</code>).	⌚ — C4
23	Rental frequency monitoring (commercial-threshold flagging)	FL/CA/HI/NV/AZ licensing statutes	Not deployed. Cron infrastructure ready (pattern from <code>auto-confirm-checkins</code> / <code>sla-monitor</code> in Migration 073). Awaits C4 thresholds.	⌚ — C4
24	State-level licensing gate (block listing creation in FL/CA/HI/NV/AZ for unlicensed Type 3 Hosts)	FL § 721.20 et al.	Not deployed. Awaits counsel C5 (hard-block vs soft-warn vs manual review).	⌚ — C5

2.6 Identity & ownership verification

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
25	Host identity verification (government-issued ID)	Fraud prevention; FTC § 5	Stripe Connect Express KYC for every Host (<code>profiles.stripe_charges_enabled</code>). Manual government-ID upload via <code>OwnerVerification.tsx</code>. Dedicated Stripe Identity / Persona not integrated.	● — C2 (whether Connect KYC is sufficient)

26	Resort ownership verification (deed / membership-cert)	Fraud prevention; consumer protection	Pre-Booked proof workflow (Migration 064, <code>ProofVerifyDialog</code>) verifies a <i>current reservation</i> , not <i>ownership</i> of the underlying timeshare. NEW: Migration 079 adds CC&R attestation — owner attests resort/HOA rules permit renting (recorded as <code>listings.cc_and_r_attested_at</code>). Required checkbox in <code>ListProperty</code> .	● (CC&R attestation deployed) + ⌚ (deed / membership-cert flow awaits C6)
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2.7 2026-05-04 brand+ops review gaps (additional rows)

#	Legal Requirement	Applicable Authority	RAV Platform Implementation	Status
27	Trademark / affiliation disclaimer in Footer	Trademark prudence	Deployed and migrated to central registry. Row 17 above tracks the actual disclaimer.	● — covered by C9
28	CC&R / rental-restriction attestation in owner onboarding	Compliance prudence; owner contract integrity	Row 26 above.	✓
29	<code>robots.txt</code> + scraping policy clause in ToS	Trademark / data-use protection; CFAA notice	<code>public/robots.txt</code> with explicit allowlist (Googlebot, Bingbot, DuckDuckBot, BraveBot) + restrictive <code>User-agent: *</code> . Terms § 7.1 Automated Access & Scraping clause citing 18 U.S.C. § 1030.	✓

3. Where we need your input (the 12 decisions)

See `counsel-meeting-prep.md` § 4 for the full version. Quick reference:

#	Decision	Affects audit rows	Priority
C1	Pay Safe / Stripe Connect satisfies FL § 721.08 / CA § 10145 / HI § 514E-9?	4, 5	P0
C2	Stripe Connect KYC sufficient or need dedicated Stripe Identity?	25	P2
C3	Real estate / rental broker license required in FL, CA, HI, NV, AZ for rental-only?	1, 3, 22, 23, 24	P0
C4	Type 1 / 2 / 3 thresholds correct?	22, 23	P1

C5	State-level gate behavior — hard-block / soft-warn / manual review?	24	P2
C6	Acceptable timeshare-ownership proof types per state?	26	P2
C7	Marketplace-facilitator registration order / state list?	7	P3
C8	Counsel-draft or review-only for 8 policy drafts?	1, 10–17, 18	P3
C9	Disclaimer 8.1–8.8 + trademark text approved?	8–17, 27	P0
C10	CA-Specific Disclosure (8.7-CA) verbatim text?	15	P1
C11	MLA carve-out paragraph language confirmed?	21	P3
C12	Recent legislation prioritization (FL HB 1537, CA AB 2992, HI SB 3090, NV SB 440, NY A 8421, TX HB 3821, IL SB 2294, CO HB 24-1175)?	scope-defining	P3

4. Post-meeting mechanics

Counsel sign-off on each item lands in code as follows:

Counsel input	Code change
C9 approved as-is	One PR (#494) flips <code>legalReviewRequired: false</code> , sets <code>reviewedBy + reviewedDate</code> across all 9 registry entries
C9 revisions	Same PR bumps version, edits text in source registry + email mirror (drift test passes), flips fields
C10 CA text returned	One PR (#493) adds "8.7-CA" registry entry; <code><StateSpecificDisclaimer propertyState="CA" /></code> starts rendering immediately
C11 MLA wording change	One paragraph edit in <code>Terms.tsx</code> § 9 + matching test update
C1 written opinion	Paste into <code>docs/payments/PAYSAFE-COMPLIANCE.md</code> § 7 placeholder; no code change
C3 license requirements	If license required in one or more of FL/CA/HI/NV/AZ: build the license-number column + Type 2/3 conditional UI (~5h per spec in <code>compliance-gap-analysis.md</code> P-11)
C4 thresholds	One commit setting threshold constants; depends on schema from P-10 build
C5 gate behavior	One commit configuring behavior; depends on schema from P-10 + license check from C3

C6 proof types	New schema + admin review queue (~6h)
C7 state values	RAV staff data-entry in admin tab — no engineering

5. Documentation lineage

	• <code>_extracted_legal_dossier.txt</code> — searchable plaintext mirror of <code>Legal_Dossier_RentAVacation_v3.pdf</code>
	• <code>_extracted_compliance_brief.txt</code> — searchable plaintext mirror of <code>RAV_Compliance_Brief_for_Claude_Agent.pdf</code>
	• <code>compliance-gap-analysis.md</code> (companion) — Part 4 priority gaps with build-now / wait-for-counsel / mixed classifications
	• <code>counsel-meeting-prep.md</code> (companion) — meeting agenda + 12-decision matrix + post-meeting checklist
	• <code>docs/payments/PAYSAFE-COMPLIANCE.md</code> — Pay Safe architectural compliance posture (DEC-038, DEC-039); landing zone for counsel sign-off on C1

End of document — Version 2.0 — 2026-05-12 (post Session 66)